

# **CV-26-001914 STANISLAUS COUNCIL OF GOVERNMENTS vs COOPER, BRANDON W – Plaintiff's Motion for Order of Prejudgment Possession - HEARING REQUIRED.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The Court notes that Defendant's Opposition was untimely filed but exercises its broad discretion to consider same. (Jack v. Ring LLC, (2023); 91 Cal. App. 5th 1186; Bozzi v. Nordstrom, Inc., (2010)186 Cal. App. 4th 755). The Court is inclined to grant the motion subject to the required hearing, based on its initial finding that Plaintiff has discharged its burden of demonstrating it is entitled prejudgment possession by eminent domain of (1) a fee interest of 7,758 square feet, (2) an access easement 9,576 square feet and (3) a drainage easement of 18,569 square feet via eminent domain over portions of the real property located at 531 N. Hart Road, Modesto, County of Stanislaus, California, and bearing Stanislaus County Assessor's Parcel Number 012-042-018 ("Larger Property"), for its planned State Route 132 West Freeway/Expressway Project for the public benefit and for all uses necessary, incidental and convenient thereto pursuant to Code of Civil Procedure section 1255.410. The Court further finds Plaintiff has, based on an appraisal, deposited the sum of \$122,000.00 into the State Treasury as probable compensation that will be awarded Defendants in the eminent domain proceeding. (California Code of Civil Procedure §§ 1255.410 and 1255.010 et seq.). The Court also finds that Plaintiff has demonstrated an overriding need to possess the property prior to the issuance of final judgment in herein, and that Plaintiff will suffer a substantial hardship if the application for possession is denied or limited. Further, the hardship to the Plaintiff of denying immediate possession outweighs the hardship to the Defendant of granting immediate possession. (Robinson v. Superior Ct., (2023) 88 Cal. App. 5th 1144). The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

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CV-26-001914 – STANISLAUS COUNCIL OF GOVERNMENTS vs COOPER, BRANDON W – Plaintiff's Motion for Order of Prejudgment Possession - HEARING REQUIRED.

The Court notes that Defendant's Opposition was untimely filed but exercises its broad discretion to consider same. (Jack v. Ring LLC, (2023); 91 Cal. App. 5th 1186; Bozzi v. Nordstrom, Inc., (2010)186 Cal. App. 4th 755).

The Court is inclined to grant the motion subject to the required hearing, based on its initial finding that Plaintiff has discharged its burden of demonstrating it is entitled prejudgment possession by eminent domain of (1) a fee interest of 7,758 square feet, (2) an access easement 9,576 square feet and (3) a drainage easement of 18,569 square feet via eminent domain over portions of the real property located at 531 N. Hart Road, Modesto, County of Stanislaus, California, and bearing Stanislaus County Assessor's Parcel Number 012-042-018 ("Larger Property"), for its planned State Route 132 West Freeway/Expressway Project for the public benefit and for all uses necessary, incidental and convenient thereto pursuant to Code of Civil Procedure section 1255.410.

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The Court also finds that Plaintiff has demonstrated an overriding need to possess the property prior to the issuance of final judgment in herein, and that Plaintiff will suffer a substantial hardship if the application for possession is denied or limited. Further, the hardship to the Plaintiff of denying immediate possession outweighs the hardship to the Defendant of granting immediate possession. (Robinson v. Superior Ct., (2023) 88 Cal. App. 5th 1144).

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